

Data Protection Law - The GDPR

What you need to know

The General Data Protection Regulation (GDPR) applies to how the personal data of all staff, pupils and parents is collected and handled. This law is about protecting individuals from the misuse of their personal data.

Definitions

PERSONAL DATA

Any information that can identify a living individual. Including that of current, former and future staff, pupils and parents.

EXAMPLES of personal data

Names, contact details, email addresses, dates of birth, internal and external assessment results, details from employment contracts, payment card information and photographs.



What is a DATA BREACH?

A data breach includes when personal data is lost, sent to the wrong person or accessed by an unauthorised person.

What the school must do

1. Put processes in place to ensure the school is GDPR compliant.
2. Provide relevant training and guidance to enable you to comply with the law.
3. Have a lawful basis for collecting and holding personal data.
4. Explain, to you and others, their data collection and management through a privacy statement.
5. Make your responsibilities clear and easy to follow.
6. Appoint a named data protection officer.
7. Report significant data breaches to the Information Commissioner's Office within 72 hours.
8. Respond to subject access requests within one month.

What you must do

1. Follow the school's guidance and training and request more if required.
2. Protect your own personal data and understand how it is collected and used.
3. Only collect and hold the personal data you need to perform your role.
4. Only keep personal data for as long as you need it.
5. Appropriately protect the personal data you hold, based on the amount and its sensitivity.
6. Only store and share data on encrypted memory sticks and emails and review what's held in paper files and markbooks.
7. Anonymise data where appropriate.

If there's a problem

1. Report all data breaches, as soon as possible, to the data protection officer or a member of the senior team, whichever is quickest.
2. Acknowledge and pass any **subject access requests** to the data protection officer or a member of the senior team, whichever is quickest. Requests can be verbal, in a letter, on email, by telephone or even social media.
3. If you need any support, the **Information Commissioner's Office (ICO)** offers advice to individuals as well as organisations www.ico.org.uk.



Your data protection officer is:

Name:

Email: